concoct an allegation of sexual assault.[18] Women in the West could be driven by economic motives, 'psychological neurosis', vengeance or jealousy to fabricate allegations. An Indian woman, conscious of the 'danger of being osctracised', the 'reflect[tion] on her chastity' and other factors, was unlikely to do so.[19]

The second avenue was to secure reforms in the criminal law through the government and Parliament. To be clear, the Supreme Court's decision was plainly wrong on the law as it stood at the time. Nevertheless, several aspects of the law tilted the scales in favour of the defendants. The identity of rape complainants was neither protected nor anonymized. The law did not specifically address rape in custodial situations. There were no restrictions on the use of a woman's sexual history in evidence.

Soon after the general elections of 1980, the Congress government asked the Law Commission to study the law on rape and sexual assault of women. The government was under severe public pressure, and conveyed this clearly to the Law Commission in its letter dated 27 March 1980.[20] The letter was especially frank, for its focus was on the 'considerable amount of discussion in the Press and in other forums' and 'strong public opinion' on the law of rape, rather than on the inherent importance of addressing the inadequacies of the law.[21] Having been asked to give this study 'top most priority',[22] the Law Commission worked at breakneck speed, producing a forty-two page report within a few weeks.[23]

The Law Commission's report suggested several far-reaching amendments to the law. Most significant among them was the recommendation that in a situation where sexual intercourse is established and the woman has stated in her evidence that she did not consent, courts should presume that a woman did not consent. It would then be the defendant's responsibility to dislodge that presumption based on evidence. According to the Law Commission, consent was not sufficient in and of itself – that consent had to be 'free and voluntary'. The Commission also recommended increasing the minimum age of consent from sixteen to eighteen – meaning that sex with a female below that age would be treated as rape. It was averse to the idea of prescribing a minimum sentence of